

Tentative Rulings

August 11, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Wells Fargo Bank, N.A., v. Sanchez*, Case No. CIVSB2528608
Plaintiff's Motion for Judgment on the Pleadings
8/11/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** to allow movant to file a supplemental declaration showing compliance with the meet-and-confer requirement.

Importantly, before filing a motion for judgment on the pleadings (JOP), the moving party "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion" (Code Civ. Proc., § 439.) Here, the declaration submitted in support fails to assert compliance with the statute. Rather, it simply asserts a letter outlining Plaintiff's position on JOP was sent and not responded to. (See Lopez Decl., ¶¶4-6.) At a minimum, a declaration needs to show attempts to satisfy the code's "in person, by telephone, or by video conference" requirement. The movant will file a supplemental declaration at least ten court days prior to the next hearing.

15. *Boyer, et al, v. Cambridge Sierra Holdings, LLC, et al*, Case No. CIVSB2522108
Plaintiffs' Motion to Deem Admitted Matters in Requests for Admissions, Set One
8/11/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Plaintiffs served their first set of discovery on Defendant Cambridge Sierra Holdings (Cambridge) on December 31, 2025. This first set of discovery included the at-issue Requests for Admissions, Set One. (Needelman Decl., ¶¶3-5.)

Responses were due on February 3, 2026, but no responses were received. (*Id.*, ¶6.) Plaintiffs' counsel sent an email regarding the failure to respond on February 6, 2026, and gave Defendant a 2-week extension. (*Ibid.*) Again, no responses came by the deadline. (Needelman Decl., ¶8.) Plaintiff's counsel then gave a deadline of March 13, 2026 for responses to be provided, indicating that these motions would be filed thereafter. (*Id.*, ¶9.) This motion followed.

"The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) "There is no relief under section 473." (*Ibid.*) "The defaulting party is limited to the remedies available in (CCP § 2033.280)." (*Ibid.*) "The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted." (*Demyer, supra*, 36 Cal.App.4th at p. 395.) "The nonresponding party then has until the 'hearing on the motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has

no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party.” (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

19. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Summary Judgment Against All Occupants
8/11/26, 9:00 a.m., Dept. S-17

This matter was continued from July 14, 2026, to allow for the filing of exhibits

Tentative Ruling

The Court would **GRANT** summary judgment as to “All Unknown Occupants” consistent with the prior given service.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add “All Unknown Occupants,” stating that the Proof of Service on All Unknown Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. This motion followed.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant’s favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court’s sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Now before the Court is Plaintiff’s motion for summary judgment against “all occupants”.

The motion first came before the Court on July 14, 2026. At that time, the Court continued the motion because Plaintiff failed to attach the referenced exhibits. In addition, a proper Proof of Service of Summons related to All Unknown Occupants (POS) was not on file.

On July 14, 2026, Plaintiff filed a Declaration of Sandara DeVonne with the referenced exhibits attached. Given the prior lack of exhibits in the Court filing originally, the Court will inquire whether Plaintiff can demonstrate that all exhibits were properly served pursuant to the now-filed POS. Assuming proper service of the motion and all documents in support can be demonstrated, the Court opines as follows:

An order approving service by posting was approved by the Court on December 17, 2024. (DeVonne Decl., ¶¶5-6 Exh. B.) On July 15, 2026, Plaintiff filed a POS signed by a registered process server under penalty of perjury showing service on All Unknown Occupants by posting on January 3, 2025, and mailing by certified mail on January 10, 2025. A Prejudgment Claim of Right of Possession is listed as one of the documents included with the service. (DeVonne Decl., Exh. A.) Service on All Unknown Occupants occurred at the same time as service on Defendant Zhang. (DeVonne Decl., Exh. C.) Service was in compliance with Code of Civil Procedure section 415.46.

Service of a section 415.46 Prejudgment Claim of Right to Possession form effectively forces occupants to elect at the outset of the litigation to be added as defendants or waive the right to object to execution. Here, no occupant filed a Prejudgment Claim of Right to Possession. (DeVonne Decl., ¶11.)

A Prejudgment Claim ensures enforceability of the writ against occupants not named as defendants in the complaint and bars any occupant's right to object to eviction by a post-judgment claim of right of possession. (Code Civ. Proc., §§ 1174.3(a); 415.46(e)(1); & 715.020(d).)

In light of service being demonstrated on All Unknown Occupants, which included service of a Prejudgment Claim of Right to Possession the Court would incorporate the factual findings from its previous ruling as to Defendant and would, likewise, grant summary judgment as to "All Unknown Occupants."

18. *Pierce, et al, v. Quality Drive Away, Inc., et al*, CIVSB2313410
Motion for Preliminary Approval of Class Action Settlement
8/11/26, 1:30 p.m., Dept. S17

Tentative Ruling

The Court would **GRANT** the motion for preliminary approval. Please note the highlighted sentences *infra* that set forth items that must be addressed prior to final approval.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery

completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.” (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors “is not exhaustive and should be tailored to each case.” (*Ibid.*) The court may “engage in balancing and weighing of factors depending on the circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba, supra*, 91 Cal.App.4th at p.245 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801].) “The court must therefore scrutinize the proposed settlement agreement to the extent necessary to “reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.* [quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a “presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar, supra*, 168 Cal.App.4th at p. 128 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802].)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc., supra*, 91 Cal.App.4th at p. 251.)

“The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between

thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba, supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba, supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

This is a wage-and-hour class and representative action. Plaintiffs worked for Defendant and alleges that it misclassified them and other workers as independent contractors. On June 12, 2023, Plaintiff Pierce filed the instant suit (CIVSB2313410), alleging a class claim for various wage-and-hour violations. Shortly thereafter, parallel to this instant suit, Plaintiffs Deon Gentry Sr. and Deon Gentry Jr. filed a similar suit alleging class wage-and-hour allegations on June 22, 2023 (CIVSB2314287). On that same date, the Gentry Plaintiffs issued a notice letter to the Labor and Workforce Development Agency (LWDA), in anticipation of a representative action pursuant to the Private Attorneys General Act (PAGA). And, after the exhaustion of administrative remedies, the Gentry Plaintiffs filed a PAGA suit on August 28, 2023 (CIVSB2322025) (the “Gentry PAGA” case).

Notably, this instant case originally filed by Plaintiff Pierce was removed to Federal Court on July 18, 2023, but was remanded back on September 8, 2023. Likewise, the original wage-and-hour class case filed by the Gentry Plaintiffs was removed to Federal Court on August 14, 2023, but was remanded back on December 26, 2023.

Ultimately, the cases began to be coordinated. On March 29, 2024, Plaintiff Pierce filed a First Amended Complaint (FAC) in this matter to add-in the Gentry Plaintiffs and fold in the salient claims. In that light, on March 11, 2025, pursuant to a party stipulation, the Court *consolidated* the Gentry PAGA case (CIVSB2322025) into this instant case (CIVSB2313410). The Court notes that there were dismissals as to Plaintiff Deon Gentry *Senior* in order to accommodate his passing.

After re-commencing the suit, the Plaintiffs sought and received extensive discovery, including a substantial sampling of time and payroll records. (Mara Decl., ¶¶17-18; Lidman Decl., ¶13 [re Gentry Depo].) Plaintiff also received policy documents. (*Ibid.*) Thereafter, the parties engaged in two full-day, arms-length mediations. First, on February 11, 2025, they mediated with neutral Kelly Knight. (Mara Decl., ¶19.) Unfortunately, that first mediation was unsuccessful. However, they again mediated on March 12, 2026, this time with neutral Stephanie Chow. (*Ibid.*). That mediation was successful, and the parties ultimately completed a long-form settlement agreement by June of 2026. (Mara Decl., Exh. 1 [Settlement].) The moving papers indicate that counsel “directed” his office to notify the LWDA of the settlement contemporaneously with this motion. (Lidman Decl., ¶15.) Final approval will be contingent on confirmation that proper notice of the Settlement was, in fact, given to the LWDA.

The class size is currently estimated at 213. (Mara Decl., ¶131.) Troublingly, no figure is given for the estimated number of PAGA aggrieved employees.¹ Any final approval will be contingent on the provision of the number of PAGA aggrieved employees.

For purposes of settlement, the class period will reach from June 12, 2019, to May 11, 2026. (Settlement, ¶1.) The PAGA period is from June 22, 2022, to May 11, 2026. The class is defined as those drivers whose home terminals were in California and who drove during the relevant class and PAGA periods. Payment is *pro rata* based on the number of trips undertaken. (Settlement, ¶15(D)(i) & (E) [re PAGA].)

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$2,000,000.00,² from which will be deducted (1) \$700,000.00 for Class Counsel's attorneys' fees (exceeding 35% of the total);³ (2) costs not to exceed \$60,000.00; (3) Plaintiffs' enhancement fees of no more than \$20,00.00⁴ each (or \$40,000 total); (4) claims administration fees of no more than \$11,175.00; and (5) PAGA penalties of \$75,000.00 (of which \$56,250, or 75%, will go to the LWDA and \$18,750, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$1,113,825. This amount would be split by the class of approximately 213 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$5,229.23. Ten percent (10%) of the payout would be representative of wages, and the remaining ninety percent (90%) would be representative of penalties and interest. (Settlement, ¶15(F).) Final approval will contingent of an explanation as to why it is proper that only ten percent (10%) of this settlement is representative of wages, given that the bulk of the claims relate to wages. (See., e.g., Mara Decl., ¶¶31-33.)

Presuming for the moment that – despite the different relevant SOL periods – all class members are also PAGA aggrieved employees, the average PAGA payout would be \$88.03.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Mara Decl., ¶¶17-31 & 33.) However, the lower actual

¹ An exact number of PAGA aggrieved employees will be necessary as Final Approval. The Court will grant Preliminary Approval on with the understanding that the PAGA aspect of the settlement is to be distributed on a *pro rata* basis. (Settlement, ¶15(E) ["Amount proportionate to the number of trips"].)

² The Court acknowledges that an escalator clause may later increase the proposed settlement. (Settlement, ¶14(E).)

³ While the Court does not *per se* reject proposed attorneys' fees of 35%, it is usually not inclined to grant that percentage unless there is some sort of unusual complexity or risk that would warrant such an upward deviation. On motion for final approval, Counsel will provide an analysis of that complexity or risk that counsel believes warrants this upward departure.

⁴ Similarly, the Court notes that the requested enhancement fees are above the norm, but the submitted declarations – as of yet – do not establish any unusually high level of work, complexity, or risk. (See, e.g., Gentry Decl., ¶7 [present at mediation and answered attorney questions].) On motion for final approval, further declarations will be provided from the representative plaintiffs setting out in further detail the work done in furtherance of the case.

settlement appears fair and reasonable when calculated to include analysis of the possibility the class would not be certified; various potential defenses; as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,⁵ costs,⁶ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) appoints Mara Law Firm, PC; Lidman Law, APC; and Haines Law Group, APC, conditionally as Settlement Class Counsel; (2) appoints Deandre Pierce and Deon Gentry, Jr., as Class Representatives; (3) approves Phoenix Settlement Administrators as Settlement Administrator; (5) preliminarily finds the settlement fair, reasonable, and adequate; and (6) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Again, counsel must provide the *exact* number of class members and workweeks for the class settlement and the *exact* number of PAGA aggrieved employees and pay periods for the PAGA settlement.

⁵ Counsel must provide a full lodestar analysis in the motion for final approval.

⁶ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.